TENDAYI JOSHUA GOVERE N.O
and
VIRGINIA GOVERE
versus
NMB BANK LIMITED
and
THE SHERIFF OF ZIMBABWE

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 6 February and 14 July 2026

Urgent Chamber Application

T Magwaliba, for the applicants
E Musendekwa, for the 1st respondent
No appearance, for 2nd respondent

TAKUVA J: This is an urgent chamber application in which the Applicants seek an order staying the execution of an ejectment order granted under case number HCH4463/23 on 12 November 2025. The ejectment order directed the Applicants, and all persons claiming occupation through them, to vacate No. 52 Hassel Road, Borrowdale Brooke, Harare, within two months.

Background facts

The Applicants seek the stay pending the determination of an application for condonation and rescission instituted under case number HCH252/26. That rescission application challenges the validity of the ejectment order. The Applicants contend that, although the order was recorded as an order by consent, it was not genuinely consented to, particularly by the second Applicant.

The second Applicant avers that she was indisposed and did not personally attend the pre-trial conference at which the ejectment order was granted. The Applicants contend that their then legal practitioner, Ms *A. Mhlanga*, was not afforded an opportunity to obtain the second Applicant's instructions before consenting to the order. They further contend that there is no written document evidencing the second Applicant's consent.

The Applicants also contend that there are unresolved disputes concerning the sale in execution and judicial transfer of the property to the first Respondent. They allege that the sale in execution was attended by irregularities, including an alleged failure to give the late David Govere due notice. They further allege that the judgment debt was settled and that the first Respondent cannot retain both the payment allegedly made and the property transferred to it.

The first Respondent opposes the application. It contends that the ejectment order was properly granted by consent. Its case is that the first Applicant was personally present at the pre-trial conference and that Ms *A. Mhlanga* appeared for both Applicants. The first Respondent avers that the Applicants, through their legal practitioner, consented to the ejectment order and requested two months within which to vacate the property.

The first Respondent further contends that the questions concerning the attachment, sale in execution, confirmation of sale and judicial transfer of the property have already been determined in prior proceedings. It refers to HC7996/14 and maintains that the appeal under SC633/25 was dismissed. It argues that the present application is an attempt to prevent it from enjoying the fruits of an extant order and from obtaining vacant possession of property registered in its name.

The first Respondent initially raised preliminary objections, including want of urgency. At the hearing, those objections were abandoned. The application must therefore be determined on the merits.

Issues for Determination

1. Whether the Applicants have established a proper basis for the Court to stay execution of the ejectment order pending the determination of HCH252/26.
2. Whether the pending rescission application demonstrates prospects of success sufficient to justify a stay of execution.
3. Whether the Applicants have established that execution will result in prejudice or injustice which cannot adequately be addressed if the stay is refused.
4. Whether the balance of justice and convenience favours the Applicants or the first Respondent.

Applicable Legal Principles

A stay of execution is a discretionary remedy. The power to grant it arises from the Court's inherent jurisdiction to control and regulate its own process. Execution is not merely

a private act undertaken by the successful litigant. It is a process carried out through the authority of the Court. The Court therefore retains power to prevent its process from being used in a manner that causes injustice.

In *Chibanda* v *King* 1983 (1) ZLR 116 (S), the Supreme Court recognised the Court's power to stay execution where the circumstances justify such relief. In *Mupini* v *Makoni* 1993 (1) ZLR 80 (S), the Supreme Court reaffirmed that a stay may be granted where real and substantial justice requires it wherein the court said:

> "Execution of a judgement is a process of the Court and the Court has an inherent power to control its own process and procedures, subject to such rules as are in force. In the exercise of a wide discretion, the Court may set aside or suspend a writ of execution or cancel the grant of a provisional stay. It will act where real and substantial justice so demands. The onus rests on the party seeking a stay of execution to satisfy the court that special circumstances exist. Such special circumstances can be more readily found where the judgment is for ejectment or the transfer of property, because the carrying into operation of the judgement could make restitution of the original position difficult."

The test is not whether the applicant simply faces inconvenience or hardship if execution proceeds. The enquiry is whether, in the particular circumstances, execution would produce an injustice such that the Court should intervene to control its own process. The Court must exercise that discretion judicially, with due regard to the rights of both the judgment creditor and the judgment debtor.

A successful litigant is ordinarily entitled to the fruits of judgment. That entitlement is not lightly interfered with. A stay of execution is accordingly exceptional. It should not be granted merely because further litigation is pending or because the judgment debtor disputes the correctness of the order.

A court order must be obeyed for as long as it remains extant. In *Sunko Mauritius and Judex Burnett* v *Versapak Holdings (Pvt) Ltd (in Liquidation) and Another* SC 2/22, the Court stated:

> "It is trite, that, once a court has made an order it binds all and sundry concerned. Everyone bound by the court order has a duty to obey the order as it is until it has been lawfully altered or discharged by a court of competent jurisdiction or statute."

It then cited *Hadkinson* v *Hadkinson* and quoted:

> "It is the plain and unqualified obligation of every person against or in respect of whom an order is made by a court of competent jurisdiction to obey it, unless and until that order is discharged. The uncompromising nature of the obligation is shown by the fact, that, it even extends to where the person affected believes it to be irregular or even void."

A litigant is not entitled to decide unilaterally that an order is irregular, unjust, or unenforceable and thereafter elect not to comply with it. The proper course is to seek rescission, variation, appeal, review, or a stay upon a proper factual and legal basis.

The filing of rescission proceedings does not automatically suspend execution. A party who seeks to prevent execution pending rescission must persuade the Court that the circumstances warrant the exercise of its discretion. The existence of the rescission application is relevant because it may demonstrate that the judgment debtor has a potentially viable challenge to the order. It is not, however, decisive. The Court must therefore consider the prospects of success in the rescission application, the prejudice that may be suffered if execution proceeds, the availability of other remedies, and the balance of justice between the parties.

Although a stay of execution is not identical to an interim interdict, the ordinary interdictory considerations are useful. In *Setlogelo* v *Setlogelo* 1914 AD 221, the Court held that interim relief requires a *prima facie* right, though open to some doubt; a well-grounded apprehension of irreparable harm; a balance of convenience in favour of the applicant; and the absence of another satisfactory remedy.

The Supreme Court adopted the *Setlogelo* requirements in *Tribac (Pvt) Ltd* v *Tobacco Marketing Board* 1996 (1) ZLR 289 (S). The requirements are cumulative. A party seeking interim relief must place sufficient material before the Court to demonstrate that the interests of justice favour intervention before the principal dispute is determined.

Whether the Rescission Application Has Sufficient Prospects of Success

The Applicants' case is that the ejectment order was not a genuine consent order. They rely on the second Applicant's absence from the pre-trial conference, her alleged ill-health, and the assertion that their former legal practitioner, Ms *A. Mhlanga*, consented to the order without instructions.

The order sought to be stayed is, however, an order of this Court recorded as having been granted by consent. A consent judgment may be rescinded only upon good and sufficient cause. In *Georgias & Anor* v *Standard Chartered Finance Zimbabwe Ltd* 1998 (2) ZLR 488 (S), the Supreme Court held that, in considering rescission of a consent judgment, the Court must have regard to:

> "The reasonableness of the explanation proffered by the applicant of the circumstances in which the consent judgment was entered; the *bona fides* of the application; [and] the *bona fides* of the defence on the merits of the case which *prima facie* carries some prospect of success."

The Supreme Court further stated that those factors must be considered together and in the context of the application as a whole. The Applicants must therefore establish more than dissatisfaction with the consequences of the consent order. They must place before the Court facts showing a reasonable and legally cognisable basis upon which the consent may be impeached.

It is common cause that the first Applicant was personally present at the pre-trial conference. It is also common cause that Ms *A. Mhlanga* appeared as legal practitioner of record for both Applicants. The fact that the second Applicant was not personally present does not, without more, establish that she was unrepresented or that Ms *A. Mhlanga* lacked authority to act on her behalf.

The Applicants' allegation is specifically one of lack of authority. That allegation required direct and cogent evidence. No affidavit has been obtained from Ms A. *Mhlanga*, who attended the pre-trial conference and allegedly consented to the order. She was the person best placed to explain whether she had instructions, whether she consulted the Applicants, whether a postponement was sought, and the basis upon which consent was communicated to the Court.

In *Nyachowe* v *Boheke Farming (Pvt) Ltd & Ors* HH 86/08, the Court considered an allegation that a legal practitioner had consented without authority. In this case the Court adopted the principle from *Washaya* v *Washaya* and stated:

> "It seems to me that where the court is satisfied that a legal practitioner has the authority of his client to consent to judgment, the client will be bound by such consent and the court will visit on the client a heavy onus before rescinding the judgment."

The Court further held that a bare denial of consent does not assist an applicant where the surrounding record indicates that the legal practitioner acted with authority.

The Applicants' evidence amounts to a bare assertion that Ms *A. Mhlanga* lacked authority. That assertion is not supported by an affidavit from her, nor is it supported by any contemporaneous communication withdrawing her mandate, objecting to her representation, or challenging the consent immediately after the pre-trial conference. The first Applicant was physically present when the order was granted but has not explained why he did not object at that stage if the consent was contrary to the Applicants' instructions.

The Applicants have not, on the papers before this Court, established fraud, misrepresentation, duress, *justus* error, or a demonstrable absence of authority. Their

explanation for the entry of the consent order is inadequate, and their rescission application has not been shown to have prospects sufficiently strong to justify depriving the first Respondent of the benefit of an extant ejectment order.

The Court seized with HCH252/26 will determine the rescission application finally. For purposes of the present stay application, however, the Applicants have not established sufficient prospects of success to warrant suspension of execution.

The Sale in Execution and Judicial Transfer

The Applicants further rely on alleged irregularities in the sale in execution and judicial transfer of the property. They allege that the late David Govere was not given due notice of the sale. They also contend that the debt was settled and that the first Respondent cannot retain both payment of the judgment debt and the property.

The first Respondent disputes these allegations. It contends that the property was judicially transferred to it on 2 February 2015 as part satisfaction of the judgment debt. It further contends that the issues concerning the attachment, sale in execution, confirmation of sale, and judicial transfer were litigated in HC7996/14. The first Respondent further avers that an appeal under SC633/25 was dismissed.

This Court is not called upon in this application to determine the validity of the sale in execution or the transfer of title. The immediate issue is whether execution of the ejectment order should be stayed pending rescission of the consent order.

A stay application cannot be used to relitigate matters that have been determined in separate proceedings. Nor can it be used as a collateral challenge to title where the title holder has an extant order for vacant possession.

The principle of finality in litigation is central to the administration of justice. Litigation cannot remain perpetually open because a party continues to dispute an outcome already reached through the courts. Where a party seeks to challenge a prior judgment, it must do so through the recognised procedures of appeal, review, rescission, or other appropriate proceedings. It cannot obtain a stay merely by repeating allegations that have already been ventilated elsewhere.

The Applicants have not placed before this Court the judgments in HC7996/14, HCH3773/24, or SC633/25 in a manner that enables this Court to conclude that there remains a live and viable challenge to the first Respondent's title. Their reliance on alleged irregularities in the sale in execution does not therefore materially strengthen their claim for a stay.

Prejudice to the Applicants

The Applicants contend that the property is their family home and that eviction will render them homeless. The second Applicant states that she resides at the property with the first Applicant and other members of the family. The first Applicant refers to children of the late David Govere, some of whom are said to be minors.

The Court accepts that eviction from residential premises is serious. It may cause disruption, inconvenience, financial hardship, and emotional distress. Where children or vulnerable persons are affected, the Court must approach the matter with due care.

However, the seriousness of eviction does not in itself establish that execution must be stayed. The Court must determine whether the prejudice is such that real and substantial justice requires intervention.

The Applicants were granted two months from 12 November 2025 within which to vacate the property. The first Respondent's evidence is that, when its representative attended at the property on 13 January 2026, the house was substantially empty and there was only a caretaker and dogs at the premises. The first Respondent disputes that the Applicants and the children referred to in the founding affidavit reside at the property.

The Applicants have not provided detailed evidence regarding the persons presently occupying the property, their financial circumstances, the availability or unavailability of alternative accommodation, or the particular consequences that would follow if execution proceeds. The assertion that the family will be homeless is serious, but it remains broadly stated.

The Court must also consider that the Applicants' alleged prejudice arises in the context of an extant ejectment order. The first Respondent has title to the property and has obtained an order directing the Applicants to vacate. The Applicants' occupation is therefore not protected by any current order in their favour. The prejudice alleged by the Applicants does not, in the circumstances, demonstrate that execution will produce an injustice incapable of remedy should the rescission application later succeed.

Prejudice to the First Respondent

The first Respondent holds title to the property. It has an extant order directing the Applicants to give vacant possession. It submits that it has been deprived of possession for many years.

A stay of execution would prolong that deprivation. It would prevent the first Respondent from taking possession of property registered in its name notwithstanding the

ejectment order. The first Respondent would continue to bear the consequences of being unable to use, occupy, lease, sell, or otherwise deal with the property.

The Court must recognise that a successful litigant is entitled to the fruits of judgment. The first Respondent cannot be denied enforcement indefinitely merely because the Applicants have instituted further proceedings. The Applicants must establish a compelling basis for such interference. They have not done so.

Balance of Justice and Convenience

The Applicants' prospects in the rescission application have not been shown to be strong. Their principal allegation of lack of authority is unsupported by an affidavit from the legal practitioner who represented them. Their reliance on the underlying sale in execution seeks to introduce issues that, on the first Respondent's case, have already been determined in prior litigation.

The prejudice alleged by the Applicants is serious but insufficiently substantiated. It must be weighed against the first Respondent's title, its extant ejectment order, and its prolonged deprivation of possession. The balance of convenience also favours the first Respondent. Granting a stay would perpetuate the position under which the Applicants remain in occupation while the first Respondent is excluded from property registered in its name. Refusing the stay permits the enforcement of an extant order, while leaving the Applicants' rescission proceedings to be determined in the ordinary course.

The Court is not persuaded that real and substantial justice requires the suspension of execution.

Costs

The first Respondent seeks costs on the legal practitioner and client scale. Such costs are punitive. They are not awarded as a matter of course merely because an application fails.

Punitive costs are ordinarily reserved for conduct that is vexatious, mala fide, reckless, dishonest, or amounts to an abuse of the Court's process. The Applicants' case has not succeeded. However, the application concerns occupation of a residential property and the possible consequences of eviction. The court is not persuaded that the Applicants' conduct is of such a character as to justify a punitive costs order. Ordinary costs will adequately reflect the result.

Conclusion

The Applicants have not established that their rescission application has prospects sufficient to justify a stay of execution. They have not demonstrated that execution will result

in an injustice requiring this Court to intervene. The balance of justice and convenience favours the first Respondent.

Disposition

Accordingly**, it is ordered that:**

The application be and is hereby dismissed with costs.

TAKUVA J: ……

Magwaliba & Kwirira Legal Practitioners, applicant's legal practitioners
Musendekwa-Mtisi Legal Practitioners, first respondent's legal practitioners